APPROVED ON OCTOBER 21, 2026
BY THE BOARD OF COUNTY COMMISSIONERS
AT THE WEEKLY BUSINESS SESSION

WEEKLY BUSINESS SESSION - October 14, 2026
5:30 p.m. - Anne G. Basker Auditorium
600 N.W. Sixth Street, Grants Pass, OR 97526

Present: Ron Smith, Chair-Commissioner; Colene Martin, Vice-Chair-Commissioner; Gary Richardson, Commissioner; Nikole Guzman, Recorder

These are meeting minutes only. Only text enclosed in quotation marks reports a speaker's exact words.

Pursuant to notice through the media and in conformance with the Public Meeting Law, Ron Smith, Chair, called the meeting to order at 5:30 p.m. followed by the Pledge of Allegiance.

Items discussed were as follows:

1. **CALL MEETING TO ORDER: Pursuant to notice through the media and in conformance with the Public Meeting Law, Ron Smith, Chair, called the meeting to order at 5:30 p.m.**
2. **DECLARE A POTENTIAL CONFLICT OF INTEREST: Commissioners Richardson, Martin, and Smith each declared no potential conflicts of interest.**
3. **ADMINISTRATIVE ACTION(S) IN CONSIDERATION OF:**

a. Resolution No. 2026-037; In the Matter of Fair Housing in Josephine County

Helene Lulich, Property Manager, presented Resolution No. 2026-037, In the Matter of Fair Housing in Josephine County. She explained that, as part of the Community Development Block Grant Home Repair Program, the Board was asked to reaffirm the County's commitment to fair housing, and she read the resolution into the record. The resolution states that discrimination in the sale, rental, lease, advertising or financing of housing, or in the provision of brokerage or rental services, on the basis of race, color, religion, sex, disability, familial status or national origin is prohibited by Title VIII of the Fair Housing Amendments Act of 1988; declares the County's policy to support the Act and to implement a fair housing program ensuring equal housing opportunity for all persons, including regardless of actual or perceived sexual orientation, gender identity or marital status; commits the County, within available resources, to assist persons who believe they have been discriminated against in filing complaints with the Oregon Civil Rights Division or the U.S. Department of Housing and Urban Development; and directs the County to publicize the resolution so that real estate professionals, property owners and managers, lenders, builders, buyers and renters are aware of their rights and responsibilities, to distribute fair housing information from local, state and federal sources, and to publicize where assistance in filing a complaint is available. Ms. Lulich stated that the resolution will be published in the newspaper and on the County website with the Property Management Office telephone number as the contact for discrimination complaints. The Board had no questions.

b. BJA FY 2026 Edward Byrne Memorial Justice Assistance Grant (JAG) Program – Local Formula – Application for the full local allocation of $13,114 to fund Deputy overtime for community engagement activities – Public review and comment

Chair Smith presented the application for the full local allocation of $13,114 under the BJA FY 2026 Edward Byrne Memorial Justice Assistance Grant (JAG) Program – Local Formula to fund Deputy overtime for community engagement activities. He explained that the Sheriff intends to use the funds to help rebuild the resident deputy program by paying overtime so deputies can take part in community activities in the evenings, and stated that he considered it a good use of the funds.

c. Resolution No. 2026-039; In the Matter of Affirming Compliance with State and Federal Law and Requesting That the State of Oregon Address Counties' Federal Funding and False Claims Act Exposure

Wally Hicks, Legal Counsel, presented Resolution No. 2026-039, In the Matter of Affirming Compliance with State and Federal Law and Requesting That the State of Oregon Address Counties' Federal Funding and False Claims Act Exposure. He explained that the resolution was continued as a discussion item from the October 7, 2026 Weekly Business Session, was not intended for a vote that evening, and would appear on the following morning's Legal Counsel Update agenda, when the Board could decide whether to take action or make changes based on any public comment received. The purpose of the evening's presentation was to gather public comment on the resolution and the issues it addresses.

Mr. Hicks described the resolution as a consequence of a situation that has developed and escalated over the past two years, centered on the recital that federal grants are awarded on the condition that the recipient certify compliance with applicable federal laws, regulations, executive orders and program conditions, and that federal agencies have begun to include certifications concerning cooperation with federal immigration enforcement as express grant terms. At the Board's direction the resolution focuses on immigration and the lack of alignment between the State's approach and the federal government's current approach, while touching on the broader question of cooperation with federal and state requirements. He stated that the resolution values the County's partnership with the State, does not challenge the validity of state immigration laws, seeks dialogue and practical relief rather than confrontation, and leaves no question of the County's intent to comply fully with the law at every level; on that basis it asks the State to take specific actions and to assist with the situation. He characterized the requests as realistic and a starting point for dialogue for Josephine County and other local jurisdictions, and noted that the Board planned to weigh public comment and discuss the matter again the following morning.

Commissioner Richardson stated that the issue arises from a combination of laws and United States Supreme Court decisions: the Court has held that counties are persons that can be sued while the State is not; federal and state laws now conflict; counties must certify compliance with federal law to receive federal grants; and the federal False Claims Act allows any person to sue a county for failing to follow federal law, leaving the County unable to satisfy both. He stated that the County is asking the State to address the issue so the County is not left to pay for a large lawsuit. Commissioner Martin suggested that the resolution be sent to the Association of Oregon Counties to learn what other counties are doing and to seek AOC's support. Chair Smith agreed, stating that all Oregon counties are in the same position and that the County would like definitions and clarification from the State.

4. REQUESTS/COMMENTS FROM CITIZENS: *(Each person will be given three (3) minutes to speak)*

Stephen Fitch, Josephine County resident, spoke in opposition to the Sheriff's grant request, noting that the Sheriff was not present. He stated that no one independently investigates complaints against government employees, elected officials or law enforcement, and that citizens who file complaints or request records meet delays and resistance. He asked the Board to establish an independent civilian oversight commission with authority to receive complaints, preserve evidence, investigate, publish its findings and refer criminal matters to the District Attorney. Citing his own experience since August 25, 2025, he described what he characterized as retaliation against citizens who file complaints. He stated that no additional funding should be approved until such a commission exists.

Judy Ahrens, Josephine County resident, encouraged all registered voters to vote in the November 3 election. She announced a presentation by Alex Newman on smart cities at the Central Library in Medford the following Friday at 6:00 p.m., and a school board meeting the following Wednesday at 3:30 p.m. in Merlin. She urged the public to attend both and stay informed.

Eva Avery, Grants Pass resident, asked for clarification of the issues addressed by Resolution No. 2026-039, noting her understanding that federal law may take precedence when state and federal laws conflict. She encouraged voters to return their ballots to an official drop box rather than by mail, since mail is processed in Portland and late-mailed ballots may not be counted. She thanked those who chose to run for office. She expressed concern about what she described as the erosion of rights and about proposals in Project 2025.

5. BOARD MAY REVIEW PUBLIC COMMENTS/QUESTIONS:

Commissioner Richardson had no specific comments at this time and stated that he would address some of the matters raised under Announcements.

Commissioner Martin thanked those who attended and stated that the Board appreciates hearing from the public and that it is helpful to citizens who are listening to see others being heard.

Chair Smith had no comments.

Commissioner Richardson moved to approve Resolution No. 2026-037, In the Matter of Fair Housing in Josephine County. Commissioner Martin seconded the motion. Upon roll call: Commissioner Richardson - Yes; Commissioner Martin - Yes; Commissioner Smith - Yes. Motion carried 3-0.

Commissioner Martin moved to approve the application for the full local allocation of $13,114 under the BJA FY 2026 Edward Byrne Memorial Justice Assistance Grant (JAG) Program – Local Formula to fund Deputy overtime for community engagement

activities. Commissioner Richardson seconded the motion. Upon roll call: Commissioner Richardson - Yes; Commissioner Martin - Yes; Commissioner Smith - Yes. Motion carried 3-0.

6. APPROVAL OF CONSENT CALENDAR:

a. Minutes (draft minutes are available for viewing in the Board's Office)

Admin Workshop – October 6, 2026

Weekly Business Session – October 7, 2026

Airport Advisory Board – August 4, 2026

Animal Shelter Advisory Committee – August 6, 2026

Commissioner Richardson moved to approve the Consent Calendar as presented. Commissioner Martin seconded the motion. Upon roll call: Commissioner Richardson - Yes; Commissioner Martin - Yes; Commissioner Smith - Yes. Motion carried 3-0.

7. OTHER MATTERS: *(ORS 192.640(1) ...Commissioners may introduce other matters for consideration by the entire board)*

Commissioner Martin read a letter of commendation received that day from John Jordan, captain of the Jones Creek Neighborhood Watch, addressed to the Board of Commissioners and Josephine County Emergency Management regarding the August 13, 2026 Interstate 5 milepost 57 fire. Mr. Jordan, a 40-year Grants Pass resident who provided paramedic care in Josephine County for 20 years, wrote that deputies went door to door ordering immediate evacuation with flames visible at the bottom of the hill, and that the rapid, large-scale response saved his home of 30 years and his neighbors' homes, with the loss of one neighboring home. He thanked the Commissioners, Emergency Management and all first responders on behalf of the 45-member neighborhood watch. Commissioner Martin stated that the gratitude belongs to the first responders. Chair Smith added that the Sheriff had told him after the fire that it could have been very serious: it started in a difficult location at the junction that could have cut off West Jones Creek and Jones Creek Road, and a change in the wind helped crews extinguish it. He expressed appreciation for the work of all first responders. (Exhibit 1)

8. ANNOUNCEMENTS: *(Commissioners may discuss any topic of interest to the general community)*

Commissioner Richardson, noting that the election was 20 days away, spoke about the importance of voting and the structure of American government. He recounted Benjamin Franklin's remark that the founders had created a republic, if the people could keep it; explained that the founders rejected pure democracy in favor of a republic in which the people hold power but elect representatives who serve set terms, must follow the constitution and the law, and are expected to consider the long-term interest rather than momentary popularity; and observed that power tends to corrupt and that leaders resist its temptations only because of the character and habits they developed before taking office. He encouraged voters to choose candidates who have shown they can refuse a crowd, their friends or themselves when doing right is difficult, and to remember that the office belongs to the public and not to the officeholder.

Commissioner Martin responded to Ms. Avery's question regarding Resolution No. 2026-039, stating that part of the resolution responds to reductions in the grant funding the State of Oregon receives from the federal government and passes through to counties, and that the County needs to advocate for the State to do its part so communities can move forward.

Chair Smith stated that a large share of the County budget is grant-driven, with grants and fees now accounting for approximately 60 percent of the budget, in contrast to the funding the County once received from timber harvests. He stated that the County is caught between federal and state requirements, that decisions at either level can drastically affect the County budget, and that the Board is asking the State for clarification and relief on these issues.

Weekly Business Session adjourned at 6:01 p.m.

Nikole Guzman, Recorder

Exhibit 1 – Letter from John Jordan

Weekly Business Session
October 14, 2024
Exhibit 1

Jon and Calleen Jordan

115 Glenoak Lane
Grants Pass, OR 97526

Jon cell -541.218.1402
Calleen cell-541.660.3593
jcjordan49@gmail.com

LETTER OF COMMENDATION

From: Jones Creek Neighborhood Watch- Jon Jordan-Captain of JCNW

To: Josephine County Commissioners
Josephine County Emergency Management Services

Re: August 13, 2026 I-5 MM 57 fire

This is a letter of gratitude to the Josephine County Commissioners, Josephine County Emergency Management Services and all First Responders of many Departments.

My name is Jon Jordan. I have lived in Grants Pass for 40 years and worked in Josephine County providing paramedic care here for 20 years. Along with Mont Sharp and myself, we are captains of our neighborhood watch family on West Jones Creek Road, encompassing 45 members.

The afternoon of August first we had the Sheriff knocking on our door- evacuate **'now'**. There were flames at the bottom of the hill within view of our front door.

Your rapid and massive response saved our home of 30 years and our neighbors homes, other than , sadly Charlie Morrison's old home.

Again, thank you for your planning, response and extinguishing the fire.

Sincerely, Jon Jordan

Jon Jordan and our whole Neighbor Watch Family